

STATE OF MINNESOTA
COUNTY OF HENNEPIN

Yibiao Lu and Jie Hu,
Plaintiffs,

vs.

Fire Insurance Exchange, by and through its
attorney-in-fact Fire Underwriters Association,
doing business as Farmers Insurance,

Defendant.

DISTRICT COURT
FOURTH JUDICIAL DISTRICT

Case Type: Contract

Court File No. 27-CV-26-11606

Judge: Jamie Anderson

PLAINTIFFS' INITIAL DISCLOSURES

(Minn. R. Civ. P. 26.01(a))

Plaintiffs Yibiao Lu and Jie Hu, appearing pro se, make the following initial disclosures under Minn. R. Civ. P. 26.01(a). These disclosures are based on the information reasonably available to Plaintiffs at this time. Discovery and Plaintiffs' investigation are continuing, and Plaintiffs reserve the right to supplement or amend these disclosures under Minn. R. Civ. P. 26.05.

A. Individuals likely to have discoverable information — Rule 26.01(a)(1)(A)

The following individuals are likely to have discoverable information that Plaintiffs may use to support their claims, together with the subjects of that information. Except where a contact address is stated, individuals may be contacted through Plaintiffs; individuals affiliated with Defendant may be contacted through Defendant's counsel. Plaintiffs may call individuals affiliated with Defendant, and Defendant's appraiser, as adverse witnesses.

Individual	Subjects of discoverable information
Yibiao Lu and Jie Hu (Plaintiffs), 17756 George Moran Dr., Eden Prairie, MN 55347	The loss and the condition of the Property; the claim, inspections, and appraisal process; communications with Farmers and its agents; and Plaintiffs' damages.
Mary (last name presently unknown), Legacy Restoration LLC, 15350 25th Ave N, Unit 114, Plymouth, MN 55447; (763) 290-6966	The August 9, 2024 contact with Plaintiffs and the discovery that recent storms had caused window leaks and damage.
Jack Cook, Legacy Restoration LLC, 15350 25th Ave N, Unit 114, Plymouth, MN 55447; (763) 290-6966	The August 13, 2024 visit and the first independent observation of dents on the windows of the Property.
Patrick Flaten (formerly of Legacy Restoration LLC), 10291 Wayzata Blvd.	Assistance with Plaintiffs' administrative complaints.

#130, Minnetonka, MN 55305; 608-633-8110	
Taylor Langsdorf (formerly of Legacy Restoration LLC), project manager, c/o Legacy Restoration LLC, 15350 25th Ave N, Unit 114, Plymouth, MN 55447; (763) 290-6966	Legacy Restoration LLC's project management of work at the Property.
Brandon Mutcher, supervisor, Legacy Restoration LLC, 15350 25th Ave N, Unit 114, Plymouth, MN 55447; (763) 290-6966	Supervision of Legacy Restoration LLC's work at the Property.
Zach Sexe, Project Management, Pure Construction, 9920 Wayzata Blvd., Apt. 209, St. Louis Park, MN 55426; (952) 292-8004; zach.pureconstruction@gmail.com	Damage estimation; Appraisal preparation; Appraiser selection; Appraisal process.
Jade Reicks, Sales Manager, Pure Construction, 2112 Deerwood Dr., North Mankato, MN 56003; (763) 200-8054; jade.pureconstruction@gmail.com	The May 14, 2025 visit to the Property; the development of the window-replacement scope; and Pure Construction's conduct of the September 12, 2025 appraisal, including its handling of communications between Plaintiffs and the appraisal panel.
John Foster, Plaintiffs' appraiser, 1564 Southpoint Dr., Hudson, WI 54016; (715) 417-2307; jjlmds@gmail.com	The appraisal process and the panel's hail-causation finding.
Katherine Toomajian, Minnesota Department of Commerce	Plaintiffs' regulatory complaint (ID 93547) and Farmers' handling of it.
Neighboring homeowners in the immediate Eden Prairie neighborhood canvassed by Plaintiffs; identities and addresses to be supplemented	Hail-driven exterior repairs in the neighborhood after 2020.
Records custodian, City of Eden Prairie building/permit office	Building-permit records for the Property and the neighborhood.
Records custodian, National Weather Service / NOAA	Weather records for the July 13–14, 2024 storm.
Plaintiffs' retained forensic engineering and/or meteorology expert(s) — to be identified and disclosed under Rule 26.01(b) per the scheduling order	Hail causation, the scope of damage, and rebuttal of the Prieve Engineering report.
Nicholas Brau, Senior Claim Adjuster, Fire Insurance Exchange — through Defendant's counsel	The September 6, 2024 inspection of the Property and his inspection notes and records; the February 10, 2025 voicemail; the handling of the Claim; Plaintiffs' October 7 and October 28, 2025 requests for his inspection notes.

Bradlee Monson, Field Claim Supervisor, Fire Insurance Exchange — through Defendant’s counsel	The February 3, 2025 telephone call with Plaintiff Yibiao Lu concerning the review of evidence submitted by Plaintiffs.
Christian Dudley, Catastrophe Claims Representative, Fire Insurance Exchange — through Defendant’s counsel	The September 3, 2024 denial letter; the coverage position and photographs referred to in Defendant’s October 10, 2025 letter.
Zorphlon Miller, Senior General Claims Adjuster, Fire Insurance Exchange — through Defendant’s counsel	Defendant’s October 10, 2025 letter to Plaintiffs; the post-appraisal handling of the Claim.
Jillian Bell, Senior General Claims Adjuster, Fire Insurance Exchange — through Defendant’s counsel	Defendant’s October 21, 2025 email to Plaintiffs; the post-appraisal handling of the Claim.
Twonda Miller, Senior General Claims Adjuster, Fire Insurance Exchange — through Defendant’s counsel	Defendant’s September 24, 2025 email to Plaintiff Yibiao Lu; the post-appraisal handling of the Claim.
Amy Spawr-Bardley, Customer Relations Senior Consultant, Claims Customer Relations, Fire Insurance Exchange — through Defendant’s counsel	Defendant’s July 11, 2025 written response to the Minnesota Attorney General’s Office (File No. PHW/2025/5428546/C).
Records custodian and Rule 30.02(f) designee, Fire Insurance Exchange — through Defendant’s counsel	Defendant’s claim, policy, and underwriting records for the Property; the search for and custody of Nicholas Brau’s inspection records; the attorney-in-fact relationship with Fire Underwriters Association.
Peter Pietila, Farmers agent, 3701 Shoreline Dr., Ste. 104A, Wayzata, MN 55391; 612-220-0342	The Policy and its renewal; communications with Plaintiffs and with Defendant concerning the Claim.
Jayden Grimm, Hancock Claims Consultants, c/o 6875 Shiloh Road East, Alpharetta, GA 30005; 507-327-2595	The August 29, 2024 inspection of the Property and the photographs and captions produced from it.
Nathan Prieve, P.E., Prieve Engineering, LLC, 4937 Columbus Ave., Minneapolis, MN 55417; 612-203-2745; nathan@prieve-engineering.com	The October 9, 2024 inspection of the Property; the Prieve Engineering report (File #241008) and its Photo Appendix A.
Greg Tomes, Defendant’s appraiser — address and telephone number presently unknown	The September 12, 2025 appraisal and award; his appraiser file.
Wade Roos, umpire, Jade Claims LLC, 8616 Oak Hill Cir., Prior Lake, MN 55372-9187; (612) 283-9875; waderoos@jadeclaims.com	The September 12, 2025 appraisal and award; his working file.

B. Documents, electronically stored information, and tangible things — Rule 26.01(a)(1)(B)

Plaintiffs describe by category the documents, electronically stored information, and tangible things in their possession, custody, or control that they may use to support their claims. All are located at Plaintiffs' residence and in electronic form; copies or inspection are available upon reasonable request.

1. The homeowner's Policy 98055-49-65, including the Declarations and all endorsements.
2. The Farmers claim-file correspondence for claim 7007986837-1-1, including the September 3, 2024 and November 4, 2024 denial letters and related communications.
3. The Prieve Engineering report (File #241008), received with Defendant's November 4, 2024 denial letter, and its Photo Appendix A, received separately by electronic mail from Farmers agent Peter Pietila.
4. The September 12, 2025 appraisal award, the August 3, 2025 appraisal demand, and Plaintiffs' sworn statement in proof of loss.
5. Weather documentation for July 13–14, 2024, including National Weather Service / NOAA materials, Eden Prairie ASOS data, stormersite data, and Interactive Hail Maps data.
6. Photographs of the damage to the Property.
7. The 2020 claim-file materials (claim 3013539499-1), including the Xactimate estimate, building-loss worksheet, and settlement notice, to the extent in Plaintiffs' possession.
8. Contractor estimates, including Pure Construction's Xactimate estimate X-252246_LU-1 (August 5, 2025); Pella Quote #19753775 (July 17, 2025), incorporated in that estimate; the earlier Pella Quote #19678463 (June 26, 2025); and the Pearl Painting interior-painting proposal, Job ID 144309.
9. Plaintiffs' canvass of neighboring homeowners.
10. City of Eden Prairie building-permit records obtained by Plaintiffs.
11. Correspondence with Farmers' agent (Peter Pietila), the Minnesota Department of Commerce (Complaint ID 93547), and the Minnesota Attorney General's Office, including Defendant's July 11, 2025 letter to that Office (File No. PHW/2025/5428546/C) with its enclosed engineering report, and that Office's August 4, 2025 response.
12. Plaintiffs' communication logs.
13. The Jade Claims LLC umpire invoice #25-391 (September 5, 2025) and Plaintiffs' record of payment; Plaintiffs' receipts for costs of investigation.

C. Computation of damages — Rule 26.01(a)(1)(C)

Plaintiffs compute their damages by category as set forth below. The computation is based on information reasonably available at this time and will be supplemented after expert valuation and completion of discovery. The supporting documents are among those identified in Section B and are available for inspection and copying. The Policy provides replacement-cost coverage; actual-cash-value and depreciation figures remain to be determined.

Category of damages	Amount	Basis
Window and exterior door unit replacement — full-frame, with comparable current-production equivalents for the discontinued Semco windows	\$349,742.59 (RCV)	Pure Construction Xactimate estimate X-252246_LU-1 (August 5, 2025), Windows section: Pella Quote #19753775 at \$291,452.15, plus 10% overhead and 10% profit.
Siding — repaint and replace-and-remove	\$14,967.00 (RCV)	Same estimate, Siding section and siding labor minimum.
Downspouts and wall-base flashing	To be computed (supplement)	Contractor estimate to be obtained.
Debris removal	\$684.00 (RCV)	Same estimate, Debris Removal section.
Consequential water-intrusion and mold remediation (Count IV)	\$10,659.16, plus further costs paid when incurred (supplement)	Repainting of leak-affected walls per Pearl Painting proposal, Job ID 144309; walls only, excluding ceiling. Remaining costs to be documented as incurred.
Appraisal costs (Count IV)	\$1,125.00	Plaintiffs' share of the umpire fee. Jade Claims LLC invoice #25-391 (September 5, 2025); Plaintiffs' record of payment.
Costs of investigation (Count IV)	To be computed from receipts (supplement)	
Prejudgment interest	\$73,630.60 through September 25, 2026, and \$95.25 per day thereafter	10% simple interest under Minn. Stat. § 549.09 from August 13, 2024 on \$347,673.59 (contractor-estimate total, less the \$17,720 deductible); subject to adjustment by the Court.
Statutory and other relief — postjudgment interest; costs and disbursements; attorney fees under Minn. Stat. § 325F.70, subd. 3 and § 8.31, subd. 3a	To be determined	As allowed by statute.

D. Insurance agreements — Rule 26.01(a)(1)(D)

Not applicable to Plaintiffs. Plaintiffs are not aware of any insurance agreement under which an insurer may be liable to satisfy all or part of a possible judgment against Plaintiffs or to indemnify or reimburse for payments made to satisfy such a judgment. The Farmers policy that is the subject of this action is identified in Section B above.

Reservation.

These disclosures are made on the basis of information reasonably available to Plaintiffs at this time. Plaintiffs' investigation and discovery are ongoing, and Plaintiffs reserve the right to supplement or amend these disclosures, including the identification of expert witnesses under Rule 26.01(b) at the time set by the Court's scheduling order. Plaintiffs further reserve the right to seek taxable costs under Minn. Stat. § 604.18 by motion under subdivision 4 of that section (Complaint ¶ 3; Prayer for Relief ¶ H). Because § 604.18, subd. 4(a) provides that the complaint must not seek that recovery, Plaintiffs do not claim it at this time; if leave to amend is granted, Plaintiffs will supplement these disclosures under Minn. R. Civ. P. 26.05.

Pursuant to Minn. R. Civ. P. 26.07, the undersigned certify that, to the best of their knowledge, information, and belief formed after a reasonable inquiry, these disclosures are complete and correct as of the time made.

Dated: September 25, 2026.



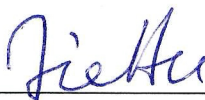
Yibiao Lu, Plaintiff *pro se*

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Jie Hu, Plaintiff *pro se*

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CERTIFICATE OF SERVICE

I, Yibiao Lu, Plaintiff *pro se*, state that on September 25, 2026, I served a true and correct copy of *Plaintiffs' Initial Disclosures* upon Defendant's counsel of record, by electronic mail in the manner the parties have agreed, as a PDF attachment sent from bill_y_lu@yahoo.com to:

Kevin J. Kennedy — kkennedy@kennedyllf.com

Mary J. Baskfield — mbaskfield@kennedyllf.com

KENNEDY LAW FIRM P.C., *Counsel for Defendant Fire Insurance Exchange*

Minn. R. Civ. P. 5.02(b); Minn. Gen. R. Prac. 14.03(d)(2). These disclosures are served, not filed. Minn. R. Civ. P. 5.04(b).

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Dated: September 25, 2026, at Eden Prairie, Hennepin County, Minnesota.



Yibiao Lu, Plaintiff *pro se*